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INTERGOVERNMENTAL COOPERATIVE PURCHASING

A G R E E M E N T

Pursuant to Chapter 39.34 of the Revised Code of Washington and to other applicable laws, the Vancouver School District and the **Reynold School District #7**, hereby agree to enter into cooperative agreements and to establish and maintain a joint purchasing agency for the purchase of various equipment and services under the following terms and conditions.

(1) This Agreement pertains to bids and contracts for supplies, material, equipment or services that may be required from time to time by both The Vancouver School District and the **Reynold School District #7**.

(2) Each of the parties from time to time goes out to public bid and contracts to purchase supplies, material, equipment, and services. Each of the parties hereby agrees to extend to the other party the right to purchase pursuant to such bids and contracts to the extent permitted by law, and to the extent agreed upon between each party and the bidder, contractor, vendor, supplier, or service provider.

(3) Each of the parties shall comply with all applicable laws and regulations governing its own purchases.

(4) Each of the parties shall contract directly with the bidder, contractor, vendor, supplier, or service provider, and pay directly in accordance with its own payment procedures for its own purchases. Each party will indemnify and hold the other party harmless as to any claim arising out of its participation in this Agreement.

(5) Any purchase made pursuant to this Agreement is not a purchase from either of the parties. This Agreement shall create no obligation to either of the parties to purchase any particular good or service, nor create to either of the parties any assurance, warranty, or other obligation from the other party with respect to purchasing or supplying any good or service.

(6) No separate legal or administrative entity is intended to be created pursuant to this Agreement. No obligation, except as stated herein, shall be created between the parties or between the parties and any applicable bidder or contractor.

(7) The Purchasing Manager of the Vancouver School District and **CFO/COO** for the **Reynold School District #7** shall be representatives of the entities for carrying out the terms of this Agreement.

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(8) This Agreement shall continue in force until **September 30, 2027** or canceled by either party, which cancellation may be effected upon receipt by one of the parties of the written notice of cancellation of the other party.

APPROVED:

Vancouver School District No. 37
PO Box 8937
Vancouver, WA 98668-8937

_____
President
Board of Directors

_____
Secretary
Board of Directors

_____
Date

APPROVED:

Reynold School District #7

DocuSigned by:
Danna Diaz
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Title: Superintendent

DocuSigned by:
Steve Gallagher
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Title: Custodial Supervisor

9/1/2022
Date

RSD Legal Approved: 7/18/2022
Board Approved: 8/24/2022

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Action Item

Recommendation to Approve Award of RFP No. 2019-025 – Custodial Work Management System and Custodial Supplies

Rationale:

Request for Proposal (RFP) No. 2019-025 for a custodial work management system and custodial supplies was advertised May 14, 2019 and May 21, 2019 and posted to the Vancouver School District (District) website for the duration of the open period. One (1) response was received at the RFP opening on June 4, 2019.

Under this contract the District is granted access to the vendor's custodial work management software program for the purpose of improving custodial efficiency and labor cost reduction. The Hillyard Cleaning Cost Analysis Program (CCAP) allows District maintenance staff to generate reports on budgets, expenditures, labor management, and supplies consumed. The program also performs cost analyses for specific tasks and measures the level of facility cleanliness. The awarded vendor will also be required to provide all known and unknown custodial supplies and equipment required to fully utilize the custodial work management program. This RFP will allow the District the flexibility to increase or decrease purchases of produce in conformity with actual requirements of schools and departments.

Contract Period:

The recommendation is for one year with the option to extend the contract for four additional one-year periods. Staff will evaluate the awarded vendor's performance at the end of each contract period and will recommend a contract renewal or re-bid for each optional one-year contract period. This recommendation constitutes the first year of a five-year contract for the purchase of custodial supplies to meet District requirements for the 2019-2020 school year.

Bid Tabulation:

A vendor bid tabulation listing specific unit prices, insurance coverage, experience and expertise, method of performance, references, terms offered, and award related comments are on file in the purchasing department.

Cooperative Bid/Interlocal Agreement:

Vancouver School District has taken the lead to cooperatively bid the Hillyard Cleaning Cost Analysis Program (CCAP) and related cleaning supplies on behalf of other school districts and public agencies in Washington and Oregon in an attempt to generate a large dollar volume of purchases at the lowest unit costs available. This contract shall include the requirements of the Vancouver School District only. School districts and public agencies that choose to utilize this contract will be required to execute an Intergovernmental Cooperative Purchasing Agreement with the Vancouver School District to satisfy legal requirements.

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Technical Evaluation:

The evaluation committee has completed a comprehensive review and evaluation of the vendor's proposal utilizing the evaluation method and criteria clearly stated in the RFP documents. The proposal was received from Walter E. Nelson. The vendor's proposal was evaluated and scored in various weighted point criteria including overall cost, distribution methods and procedures, online ordering system, ability to support the agreement, and overall RFP response with a recommended award to the vendor with the highest score. The evaluation showed that Walter E. Nelson met all District requirements. Walter E. Nelson is the District's current vendor for custodial supplies and has provided a high level of service over the past contract terms.

Vendor/Itemized Evaluation:

Based upon the committee's review and evaluation of the proposal, staff recommends the RFP be awarded to Walter E. Nelson of Portland, Oregon for custodial supplies covered under this RFP. Walter E. Nelson offered the lowest estimated annual total for all produce products at $420,000 for the 2019-2020 school year, met all District requirements, and has offered firm unit prices for produce products through the first year of the purchase agreement.

Reviewed by the Superintendent's Administrative Contracts Committee: YES

Funding Source: General Fund

Recommendation: That the Board of Directors approve the RFP award for the purchase of custodial supplies to Walter E. Nelson, in the estimated amount of $420,000 for the 2019-2020 school year with the option to renew for four (4) additional one-year periods and further authorize staff to adjust quantities to meet actual District requirements throughout the purchase agreement at the unit prices and terms awarded under this RFP.